
2:00 PM **LINE 7**

25-CIV-00220

MARTIN MOUTON VS. EAST PALO ALTO COMMUNITY ALLIANCE AND NEIGHBORHOOD
DEVELOPMENT ORGANIZATION

MARTIN MOUTON
EAST PALO ALTO COMMUNITY ALLIANCE AND NEIGHBORHOOD
DEVELOPMENT ORGANIZATION

PRO PER
E. FORREST SHRYOCK

DEFENDANT EAST PALO ALTO COMMUNITY ALLIANCE NEIGHBORHOOD DEVELOPMENT ORGANIZATION'S
MOTION TO COMPEL PLAINTIFF TO PROVIDE FURTHER RESPONSES TO WRITTEN DISCOVERY

TENTATIVE RULING:

On January 21, 2026, this court denied defendant East Palo Alto Community Alliance Neighborhood Development Organization's Motion to Compel Plaintiff's Responses to Written Discovery and Request for Sanctions. The court issued a tentative ruling, finding that the motion was defective because defendant failed to submit a separate statement. Defendant has now filed what appears to be the same motion. The motion is again **DENIED**.

Plaintiff did not respond to either motion. The parties are **ORDERED TO APPEAR** at a case management conference on August 26, 2026 in Department 28 at 9:00 am to discuss the status of this case.

* * *

The Notice of Hearing, again, states the wrong address for Department 28. Department 28 is located 800 North Humboldt St., San Mateo, CA, 94401. Defendant is again cautioned to include the correct address in any future notices.

Defendant seeks to compel responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents from plaintiff Martin Mouton claiming that plaintiff failed to provide timely responses. Defendant cites Code of Civil Procedure, sections 2030.290, subd. (b), and 2031.300, subd. (b), as authority for this Motion. (Deft.'s Mem., at pp. 3:25-4:12.)

These code sections apply where the responding party fails to serve timely responses to discovery. However, defendant acknowledges that plaintiff served responses to this discovery. (Babojanov Decl., ¶ 3.) Although plaintiff's responses consisted solely of objections (*id.*, exh. C), defendant must file a motion to compel further responses to the extent it contends that plaintiff's objections are without merit. (See Code Civ. Proc., §§ 2030.300, subd. (a) [on receipt of a response to interrogatories, propounding party may move for an order compelling further response if the propound party deems that an objection to an interrogatory is without merit or too general], 2031.310, subd. (a) [upon receipt of response to an inspection demand, the demanding party may move for an order compelling further response if the demanding party deems that an objection in the response is without merit or too general].) Additionally, a motion to compel

further responses must be accompanied by a separate statement, which defendant has not provided in support of this Motion. (See Cal. Rules of Court, rule 3.1345(a)-(b).)

Defendant's Request for Sanctions is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 8**

25-CIV-05177

JEANNETTE LONG VS. ARTICHOKE JOE'S CASINO INC.

JEANNETTE LONG
ARTICHOKE JOE'S CASINO INC.

PRO/PER
MELISSA A. HOFFMAN

MOTION FOR RECONSIDERATION (CCP 1008) AND MOTION TO SET ASIDE CCP 473(b)

TENTATIVE RULING:

Plaintiff Jeanette Long's Motion for Reconsideration and Motion to Set Aside [the Court's April 29, 2026 Order Denying Terminating Sanctions], filed on May 1, 2026, is **DENIED**.

Defendant Artichoke Joe's request for attorney's fees is **DENIED**.

Plaintiff is reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A motion for reconsideration must be "based upon new or different facts, circumstances, or law." (Code Civ. Proc., § 1008, subd. (a).) Plaintiff has not presented new facts or legal authority. The purportedly "new fact" – an email to Ms. Long dated April 16, 2025 (Long Decl., exh. L) is not a new fact. That Ms. Long lost unidentified hard copy legal files on or about December 20, 2025 does not excuse her failure to present the email in the initial motion. Plaintiff further has not explained what documents were allegedly stolen, how that affected her prior motion, and why, given that the email continued to exist in an electronic form after the hard copy documents were purportedly taken, she did not include the email in the initial filing. "A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) Ms. Long has not done so. Accordingly, she has neither satisfied Section 1008, nor has she demonstrated "mistake, inadvertence, surprise, or excusable neglect" warranting relief. (Code Civ. Proc., § 473, subd. (b).)

Substantively, even if plaintiff had submitted the email attached as exhibit L, it would not have changed the outcome. Contrary to plaintiff, exhibit L does not "[a]dmit[] to a criminal invasion of privacy." (Mot., at p. 2.) Rather, it refers to the settlement agreement and release of all claims between the parties, signed on April 1, 2025, relating to an alleged incident involving a photograph taken by an Artichoke Joe's employee in the women's bathroom, on or about March 17, 2025. (Long Decl., exh. M.) Even if that email had indicated some form of discovery abuse, the court would still have denied the request for terminating sanctions, which is a severe remedy, only taken after other lesser remedies have proved insufficient. (*Dept. of Forestry and Fire*
